

26SMCV00669 26SMCV00669

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C07%2F10%2F2026

Source SHA-256: 0171a692d59cdb24df48e00867984685c767937bb306edf013b655704d4391cf

Case Number: 26SMCV00669 Hearing Date: July 10, 2026 Dept: M

CASE NAME: Peralta v. Cedars-Sinai Medical Center, et al.

CASE NO.: 26SMCV00669

MOTION: Demurrer to the Complaint

HEARING DATE: 7/10/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant Cedars-Sinai

Medical Center demurs to Plaintiff Leslie Peralta’s Complaint, including the Second Cause of Action for General Negligence, Third Cause of Action for Battery, Fourth Cause of Action for Negligent Hiring, Supervision and Retention, Eleventh Cause of Action for Breach of Contract/Third-Party Beneficiary, and Twelfth Cause of Action for Negligent Infliction of Emotional Distress (“NIED”).

Second and Fourth Cause of Action: Negligence and Negligent Hiring

Defendant argues that the general negligence and negligent hiring causes of action are duplicative with the first cause of action for medical malpractice. To an extent, this is true. The negligence cause of action arises from allegations of medical negligence for Defendant’s staff’s positioning of Plaintiff in stirrups during childbirth. (Compl., ¶¶ 28, 32.) Those two alternative causes of action will be judged by the same professional healthcare standards against Defendant. (*Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal. 4th 992, 998; *Flores v. Presbyterian Intercommunity Hospital* (2016) 63 Cal.4th 75, 88-89.) In general, the fact that one cause of action is duplicative or mirrors another cause of action is not a ground on which a demurrer must be sustained under section 430.10, in part because “it is a waste of time and judicial resources to

entertain a motion challenging part of a pleading on the sole ground of repetitiveness.” (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 889-890; The argument that two causes of action are duplicative “is the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment.” (Id.)

However,

a court may sustain a demurrer for “duplicative pleading which adds nothing to the complaint by way of fact or theory.” (Award Metals, Inc. v. Superior Court (1991) 228 Cal.App.3d 1128, 1135.) Under the circumstances, the second cause of action for general negligence is purely duplicative, and adds nothing by way of fact or theory. Accordingly, the demurrer is SUSTAINED without leave to amend as to the second cause of action.

The

negligent hiring cause of action targets different conduct and seeks to impose direct liability on Defendant, rather than merely respondeat superior liability for its agents' negligence. Thus, that cause of action adds to the complaint by way of fact or theory, and therefore, the demurrer is OVERRULED as to the fourth cause of action.

Third Cause of Action: Medical Battery

Generally, the elements

of medical battery are 1) that the defendant either performed a medical procedure without the plaintiff's consent, or alternatively, that the plaintiff consented to one medical procedure, but the defendant performed a substantially different medical procedure; 2) that the plaintiff was harmed, and 3) that the defendant's conduct was a substantial factor in causing the plaintiff's harm. (Cobbs v. Grant (1972) 8 Cal.3d 229, 239.)

Alternatively, a

patient may place conditions on consent, and if an actor “exceeds the terms or conditions of the consent, the consent does not protect the actor from liability for the excessive act.” (Ashcraft v. King (1991) 228 Cal.App.3d 604, 609-610.) “There are three elements to a claim for medical battery under a violation of conditional consent: the patient must show his consent was conditional; the doctor intentionally violated the condition while providing treatment; and the patient suffered harm as a result of the doctor's

violation of the condition.” (Conte v. Girard Orthopaedic Surgeons Medical Group, Inc. (2003) 107 Cal.App.4th 1260, 1269.)

The Complaint fails to state a battery claim under either theory. The Complaint fails to allege that Plaintiff did not give consent for the procedure, in this case, consent to position Plaintiff on stirrups during labor. (Compl., ¶¶ 14, 36.) The Complaint does not allege that Defendant’s agents performed a substantially different medical procedure—they, in fact, placed Plaintiff in stirrups incident to providing the sought obstetrical care. (Id.)

Plaintiff attempts to rely on a conditional consent theory. The Complaint alleges a conclusion that Plaintiff only consented to “reasonable, medically necessary, and non-injurious handling, positioning, and use of equipment incident to providing obstetrical care” and did not consent to “preventable harmful contact, excessive pressure, unsafe hip flexion/abduction/external rotation, prolonged or unmonitored stirrup positioning, or any positioning that would unreasonably compress femoral nerve structures or otherwise injure her”. (Id.) The Court questions whether such a condition on consent could exist as a matter of law. In effect, Plaintiff alleges she conditioned her consent on the medical professionals not negligently performing the medical procedure. Allowing liability for battery under such circumstances would permit a patient’s recovery for purely negligent conduct, and avoidance of the policy limitations set forth in Cobbs. In any event, the allegations do not establish a claim for conditional consent battery. Caselaw requires that the patient give an expressed condition on consent. (Ashcraft, supra, 228 Cal.App.3d at 610-612.) For example, in Ashcraft, the record established conditional consent where the patient and her mother informed the surgeon that they wanted “only family blood” during their meetings. (Id., at 612.) Plaintiff does not allege she informed the doctors of her purportedly conditional consent. Moreover, the intent element requires a “willful disregard” of the plaintiff’s conditional consent. (Ashcraft, supra, 228 Cal.App.3d at 613.) Plaintiff does not allege that Defendant’s agents intentionally violated her condition, such as by placing Plaintiff in a position that they knew would be harmful, cause excess pressure, unsafe hip flexion, etc. Instead, the complaint alleges the mere conclusion that Defendants “intentionally held, positioned, restrained, and/or manipulated PLAINTIFF’s lower extremities using the STIRRUPS and related positioning techniques during the Delivery.” (FAC ¶38.) More facts are required to establish that Defendants’ positioning of Plaintiff was in “willful disregard” of Plaintiff’s rights.

Accordingly, the demurrer is SUSTAINED. Leave to amend will only be granted upon Plaintiff proffering facts which support a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Eleventh

Cause of Action: Breach of Contract

To allege a breach of contract, a plaintiff must plead the contract, plaintiff's performance or excuse for non-performance, defendant's breach, and damage to plaintiff therefrom. (Acoustics, Inc. v. Trepte Constr. Co. (1971) 14 Cal.App.3d 887, 913.) "A written contract may be pleaded by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect." (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.) "In order to plead a contract by its legal effect, plaintiff must allege the substance of its relevant terms." (Id.) To plead a contract's legal effect, the plaintiff must allege "the substance of its relevant terms. This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions, and it involves the danger of variance where the instrument proved differs from that alleged." (4 Witkin, Cal. Proc. (6th ed. 2022) Pleading § 527.)

The

Complaint fails to state a claim for breach of contract. The Complaint alleges an agreement between Defendant and an unspecified doe manufacturer, where the manufacturer agreed to provide and/or maintain the stirrups for use on labor-and-delivery patients, and Defendant agreed to purchase, lease, or otherwise utilize the stirrups in providing obstetrical care. (Compl., ¶ 77.) The Complaint fails to state whether this agreement is written, is oral, or is implied by conduct. (CCP § 430.10(g).) The Complaint fails to attach or plead the relevant terms of the contract. The Complaint also fails to state facts supporting Plaintiff's third-party beneficiary standing, including whether a motivating purpose of the contracting parties was to provide a benefit to Plaintiff, or whether permitting Plaintiff to bring its own breach of contract action against Defendant is consistent with the objectives of the contract and the reasonable expectations of the contracting parties. (Goonewardene v. ADP, LLC (2019) 6 Cal.5th 817, 830.) The Complaint only alleges a single conclusion that labor-and-delivery patients such as Plaintiff were intended

beneficiaries of the contracts, including the warranties that the stirrups would be safe, fit, and accompanied by adequate instructions and warnings for their intended use. (Compl., ¶ 78.) Defendant also notes that, as an alleged provider of professional medical services and not suppliers of products, it cannot be liable for the alleged breach of warranty or products liability. (Hector v. Cedars-Sinai Medical Center (1986) 180 Cal.App.3d 493, 508, fn 3.) Plaintiff does not oppose the demurrer as to this cause of action.

Accordingly, the demurrer is SUSTAINED without leave to amend.

Twelfth

Cause of Action: NIED

Finally,

Defendant argues that the NIED cause is duplicative and redundant with the professional negligence claim, and fails to identify which defendants are subject to this cause of action in violation of California Rules of Court, rule 2.112.

The arguments concerning the duplicative nature of the cause of action are not well-taken for the same reasons discussed as to the other negligent hiring cause of action. The Court, however, concurs that the pleading violates rule 2.112 since it fails to identify any particular defendants.

Accordingly, the demurrer is SUSTAINED with leave to amend as to the twelfth cause of action.

Plaintiff has 20 days to file an amended complaint.